

Federal Constitution

NOTES

Art. 112c

Added by Act 26/1963, section 46, in force from 16-09-1963.

Clause (1)(a)

The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.

Clause (2): See Art. 112b(1).

Clauses (2), (3) & (4)

The words “the State of Sabah or Sarawak” substituted for the words “a Borneo State” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

Clause (4): See Art. 112b(5).

Art. 112A, 112B, 112C & 112D

In the shoulder note, the words “States of Sabah and Sarawak” substituted for the words “Borneo States” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

Art. 112D

1. Added by Act 26/1963, section 47, in force from 16-09-1963.
2. *See Art. 112C & Tenth Schedule, Part IV, subsection 1(2).*

agree on the alteration or abolition of any of those grants, or the making of another grant instead of or as well as those grants or any of them, the said Part IV and Clause (2) of Article 112c shall be modified by order of the Yang di-Pertuan Agong as may be necessary to give effect to the agreement:

Provided that on the first review the grant specified in subsection (2) of section 1 of the said Part IV shall not be brought into question except for the purpose of fixing the amounts for the ensuing five years.

(2) Any review under this Article shall take into account the financial position of the Federal Government, as well as the needs of the States or State concerned, but (subject to that) shall endeavour to ensure that the State revenue is adequate to meet the cost of State services as they exist at the time of the review, with such provision for their expansion as appears reasonable.

(3) The period for which provision is to be made on a review shall be a period of five years or (except in the case of the first review) such longer period as may be agreed between the Federation and the States or State concerned; but any order under Clause (1) giving effect to the results of a review shall continue in force after the end of that period, except in so far as it is superseded by a further order under that Clause.

(4) A review under this Article shall not take place earlier than is reasonably necessary to secure that effect can be given to the results of the review from the end of the year 1968 or, in the case of a second or subsequent review, from the end of the period provided for by the preceding review; but, subject to that, reviews shall be held as regards both the States of Sabah and Sarawak for periods beginning with the year 1969 and with the year 1974, and thereafter as regards either of them at such time (during or after the period provided for on the preceding review) as the Government of the Federation or of the State may require.

(5) If on the occasion of any review under this Article the Government of the Federation gives notice to the States or State concerned of their intention to vary any of the assignments of revenue under Part V of the Tenth Schedule (including any substituted or additional assignment made by virtue of this Clause), or to vary Clause (4) of Article 112c, the review shall take the

Federal Constitution

NOTES

Art. 112d—(cont.)

Clause (4)

The words “States of Sabah and Sarawak” substituted for the words “Borneo States” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

Clause (5): See Art. 112c(4).

variation into account, and provision shall be made by order of the Yang di-Pertuan Agong so as to give effect to the variation from the beginning of the period provided for on the review:

Provided that this Clause shall not apply to the assignments under sections 4, 7 and 8, and shall not apply to that under section 5 or 6 until the second review.

(6) If on any review the Federal Government and the Government of a State are unable to reach agreement on any matter, it shall be referred to an independent assessor, and his recommendations thereon shall be binding on the governments concerned and shall be given effect as if they were the agreement of those governments.

(7) Clause (4) of Article 108 shall not apply to require the Federal Government to consult the National Finance Council in respect of matters arising under this Article.

(8) Any order of the Yang di-Pertuan Agong under this Article shall be laid before each House of Parliament.

112E. (*Repealed*).

PART VIII

ELECTIONS

Conduct of elections

113. (1) There shall be an Election Commission, to be constituted in accordance with Article 114, which, subject to the provisions of federal law, shall conduct elections to the House of Representatives and the Legislative Assemblies of the States and prepare and revise electoral rolls for such elections.

(2) (i) Subject to paragraph (ii), the Election Commission shall, from time to time, as they deem necessary, review the division of the Federation and the States into constituencies and recommend such changes therein as they may think necessary in order to comply with the provisions contained in the Thirteenth Schedule; and the reviews of constituencies for the purpose of elections to the Legislative Assemblies shall be undertaken at

Federal Constitution

NOTES

Art. 112E

This Article was inserted by Act 26/1963, section 48, in force from 16-09-1963, and was repealed by Act 59/1966, section 2, in force from 09-08-1965. The Article read as follows:

“112E.(1) The Federal Government and the government of Singapore may from time to time enter into agreements providing for all or any of the following matters:

- (a) the manner in which the revenue derived by the Federation from Singapore or any part of that revenue is to be collected and accounted for, and the division of it between the Federation and the State;
- (b) the exercise by the State government or other authority of that State in relation to any such revenue of powers conferred by the laws relating thereto, or the concurrence of that government or any such authority in the exercise of any of those powers;
- (c) the inclusion of Singapore in a common market with the rest of the Federation, the establishment of a Tariff Advisory Board and the laying down of conditions for the levying of import and export duties in relation to goods imported into or exported from Singapore;
- (d) excluding or modifying in relation to the State all or any of the provisions of Articles 109 and 110 and the Tenth Schedule;
- (e) the making of payments (by way of loan or otherwise) by the Federation to the State or by the State to the Federation;
- (f) determining the revenue which is to be treated for the purposes of any such agreement as derived from Singapore, reviewing the operation of any such agreement and referring to the decision of an independent assessor matters arising on such a review and not settled by agreement, and other matters arising out of or incidental to any such agreement.

(2) The Yang di-Pertuan Agong shall by order make such provision as may be necessary to give effect to any such agreement as is mentioned in Clause (1), including provision modifying in relation to Singapore any law relating to any federal revenue; and any such order shall be laid before each House of Parliament.

(3) An order under Clause (2) may provide that the executive authority of the State shall extend to the administration of any specified provisions of the law relating to any federal revenue, and may for that purpose confer powers and impose duties on any authority of the State.

(4) In relation to Singapore Part III of the Tenth Schedule shall have effect as if the source of revenue specified in section 7 included the property tax levied for local purposes by the State.

(5) The decision of an independent assessor on any matter referred to him on the review of an agreement under this Article shall be binding on the governments concerned and shall be treated for purposes of this Article as the agreement of those governments.

(6) Clause (4) of Article 108 shall not apply to require the Federal Government to consult the National Finance Council in respect of any agreement under this Article.

(7) An agreement made before Malaysia Day shall have effect for the purposes of this Article.

(8) This Article shall cease to have effect as regards the making of any further agreement thereunder—

- (a) if at any time there is no agreement in force under this Article; and
- (b) in such other circumstances as may be provided by any agreement thereunder:

Provided that it shall not under paragraph (a) so cease to have effect pending the completion of a review of the operation of such an agreement (including any reference to an independent assessor).”.

Art. 113

Clause (1)

- a. The words “and delimit constituencies” which appeared after the words “Legislative Assemblies of the States” were deleted by Act 14/1962, paragraph 20(a), in force from 21-06-1962.

the same time as the reviews of constituencies for the purpose of elections to the House of Representatives.

(ii) There shall be an interval of not less than eight years between the date of completion of one review, and the date of commencement of the next review, under this Clause.

(iii) A review under paragraph (i) shall be completed within a period of not more than two years from the date of its commencement.

(3) If the Election Commission are of opinion that in consequence of a law made under Article 2 it is necessary to undertake the reviews mentioned in Clause (2), they shall do so, whether or not eight years have elapsed since the last review under that Clause.

(3A) (i) Where the number of elected members of the House of Representatives is altered in consequence of any amendment to Article 46, or the number of elected members of the Legislative Assembly of a State is altered in consequence of a law enacted by the Legislature of a State, the Election Commission shall, subject to Clause (3B), undertake a review of the division into federal or State constituencies, as the case may be, of the area which is affected by the alteration, and such review shall be completed within a period of not more than two years from the date of the coming into force of the law making the alteration.

(ii) A review under paragraph (i) shall not affect the interval provided under paragraph (ii) of Clause (2) in respect of a review under paragraph (i) of that Clause.

(iii) The provisions of the Thirteenth Schedule shall apply to a review under this Clause, but subject to such modifications as may be considered necessary by the Election Commission.

(3B) Where an amendment to Article 46 or a law enacted by the Legislative Assembly of a State referred to in paragraph (i) of Clause (3A) comes into force after the lapse of eight years from the date of completion of the last review under Clause (2) and the Election Commission are of the opinion that it is necessary to undertake a review under Clause (2), the Election Commission shall not undertake a review under paragraph (i) of Clause (3A) but shall instead undertake a review under Clause (2) and in conducting such review shall take into account any area which is affected in consequence of the amendment or the law referred to in paragraph (i) of Clause (3A).

Federal Constitution

NOTES

Art. 113—(cont.)

- b. *See—*
 - i. Art. 115(2);
 - ii. Elections Act 1958 [*Act 19*].

Clause (2)

- a. This Clause as originally in force commenced as follows:

“After the first delimitation of constituencies in accordance with Articles 116 and 117 the Election Commission shall, at intervals of not more than ten nor, subject to Clause (3), less than eight years, review the division of the Federation and the States into constituencies and make such changes therein as they may think necessary in order to comply with the provisions of those Articles; and the reviews of constituencies for the purpose of elections to the Legislative Assemblies shall be undertaken at the same time as the reviews of constituencies for the purpose of elections to the House of Representatives.”.
- b. Act 14/1962, paragraph 20(*b*), in force from 21-06-1962, substituted the words “Article 171” for the words “Articles 116 and 117” and paragraph 20(*c*) substituted the words “and recommend such changes therein as they may think necessary in order to comply with the provisions contained in the Thirteenth Schedule” for the words “and make such changes therein as they may think necessary in order to comply with the provisions of those Articles”.
- c. Act 26/1963, subsection 10(2), in force from 16-09-1963, deleted the words “After the first delimitation of constituencies in accordance with Article 171” which then appeared at the commencement.
- d. The present Clause was substituted by Act A585, paragraph 25(*a*), in force from 14-04-1984 and replaced the earlier Clause which read as follows:

“(2) The Election Commission shall, at intervals of not more than ten nor, subject to Clause (3), less than eight years, review the division of the Federation and the States into constituencies and recommend such changes therein as they may think necessary in order to comply with the provisions contained in the Thirteenth Schedule; and the reviews of constituencies for the purpose of elections to the Legislative Assemblies shall be undertaken at the same time as the reviews of constituencies for the purpose of elections to the House of Representatives.”.
- e. *See* Thirteenth Schedule, section 4.

Clause (3)

The words “or 46” which appeared after the words “Article 2” were deleted by Act 14/1962, section 32, in force from 21-06-1962.

Clause (3A)

- a. Added by Act A585, paragraph 25(*b*), in force from 14-04-1984.
- b. The words “, subject to Clause (3B),” were inserted in paragraph (i) of Clause (3A), by Act A849, paragraph 2(*a*), in force from 20-11-1992.

Clause (3B): Added by Act A849, paragraph 2(*b*), in force from 20-11-1992.

Clause (4)

- a. The present Clause was inserted by Act 14/1962, section 32, in force from 21-06-1962 and replaced the original Clause which read as follows:

“(4) The Election Commission shall also conduct elections to the municipal council of the federal capital, and State law may authorize the Commission to conduct any other election.”.
- b. *See* Local Government Elections Act 1960 [*Act 473*].

(4) Federal or State law may authorize the Election Commission to conduct elections other than those referred to in Clause (1).

(5) So far as may be necessary for the purposes of its functions under this Article the Election Commission may make rules, but any such rules shall have effect subject to the provisions of federal law.

(6) There shall be separate reviews under Clause (2) for the States of Malaya and for each of the States of Sabah and Sarawak, and for the purposes of this Part the expression “unit of review” shall mean, for federal constituencies, the area under review and, for State constituencies, the State, and the expression “States of Malaya” shall include the Federal Territories of Kuala Lumpur, Labuan and Putrajaya.

(7) Subject to Clause (3), the period for the first reviews under Clause (2) for any unit of review shall be calculated from the first delimitation of constituencies for that unit under this Constitution or under the Malaysia Act [*Act 26 of 1963*].

(8) Notwithstanding Clause (7) of this Article the period for reviews under Clause (2) for the unit of review of the States of Malaya undertaken after the passing of the Constitution (Amendment) (No. 2) Act 1973 shall be calculated from the first delimitation of constituencies for that unit immediately following the passing of that Act.

(9) The date of the commencement of a review under Clause (2) or Clause (3A), as the case may be, shall be the date of the publication in the *Gazette* of the notice referred to in section 4 of the Thirteenth Schedule.

(10) The date of the completion of a review under Clause (2) or Clause (3A), as the case may be, shall be the date of the submission of the report to the Prime Minister under section 8 of the Thirteenth Schedule, and a notice of such date shall be published by the Election Commission in the *Gazette*.

Constitution of Election Commission

114. (1) The Election Commission shall be appointed by the Yang di-Pertuan Agong after consultation with the Conference of Rulers, and shall consist of a chairman, a deputy chairman and five other members.

Federal Constitution

NOTES

Art. 113—(cont.)

Clause (5)

See Constitution (Election Commission) Rules 1960—L.N. 110/1960.

Clause (6)

- a. Added by Act 26/1963, subsection 10(2), in force from 16-09-1963.
- b. The word “and” which appears after the words “States of Malaya” was inserted and the words “and for the State of Singapore” which appeared after the words “Borneo States” were deleted by Act 59/1966, section 2, in force from 09-08-1965.
- c. The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.
- d. The words “, and the expression “States of Malaya” shall include the Federal Territory of Kuala Lumpur and Federal Territory of Labuan” were inserted by Act A585, subsection 15(1), in force from 16-04-1984.
- e. Subsequently the words “Federal Territories of Kuala Lumpur, Labuan and Putrajaya” substituted for the words “Federal Territory of Kuala Lumpur and the Federal Territory of Labuan” by Act A1095, subsection 19(1), in force from 01-02-2001.

Notes:

1. Upon the commencement of Act A1095, the area which constitutes the Federal Territory of Putrajaya shall cease to form part of a State constituency, but until the dissolution of the Legislative Assembly of the State of Selangor next following the commencement of this Act, the member of that Assembly elected from such constituency shall, notwithstanding the exclusion of that area from such constituency, continue to be a member of that Assembly.
2. Until the dissolution of Parliament next following the commencement of Act A1095, the federal constituency which includes the area which constitutes the Federal Territory of Putrajaya shall continue to exist and the member elected from such constituency shall continue to be a member of Parliament.

Clause (7): Added by Act 26/1963, subsection 10(2), in force from 16-09-1963.

Clause (8): Inserted by Act A206, section 13, in force from 23-08-1973.

Clauses (9) & (10): Inserted by Act A585, paragraph 25(c), in force from 14-04-1984.

Notes:

1. Upon the commencement of Act A585 in force from 16-04-1984 the area which constitutes the Federal Territory of Labuan shall cease to form part of a State constituency.
2. Until the dissolution of the Legislative Assembly of the State of Sabah, next following the commencement of Act A585 the member of the said Assembly elected from such constituency shall, notwithstanding the exclusion of the said area from the said constituency, continue to be a member of the said Assembly.

For the dissolution of the Legislative Assembly of the State of Sabah—See Sabah G.N. No. 141/1985.

3. Until the dissolution of Parliament next following the commencement of that Act, the federal constituency which includes the area which constitutes the Federal Territory of Labuan shall continue to exist and the member elected from the said constituency shall continue to be a member of Parliament.

(2) In appointing members of the Election Commission the Yang di-Pertuan Agong shall have regard to the importance of securing an Election Commission which enjoys public confidence.

(3) A member of the Election Commission shall cease to hold office on attaining the age of sixty-six years or on becoming disqualified under Clause (4) and may at any time resign his office by writing under his hand addressed to the Yang di-Pertuan Agong, but shall not be removed from office except on the like grounds and in the like manner as a judge of the Federal Court.

(4) Notwithstanding anything in Clause (3), the Yang di-Pertuan Agong shall by order remove from office any member of the Election Commission if such member—

- (a) is an undischarged bankrupt; or
- (b) engages in any paid office or employment outside the duties of his office; or
- (c) is a member of either House of Parliament or of the Legislative Assembly of a State.

(4A) In addition to any disqualification provided under Clause (4), the chairman of the Election Commission shall be disqualified from holding such office if after three months of his appointment to such office or at any time thereafter he is or becomes a member of any board of directors or board of management, or an officer or employee, or engages in the affairs or business, of any organization or body, whether corporate or otherwise, or of any commercial, industrial or other undertaking, whether or not he receives any remuneration, reward, profit or benefit from it:

Provided that such disqualification shall not apply where such organization or body carries out any welfare or voluntary work or objective beneficial to the community or any part thereof, or any other work or objective of a charitable or social nature, and the member does not receive any remuneration, reward, profit or benefit from it.

(5) Parliament shall by law provide for the remuneration of members of the Election Commission, and the remuneration so provided shall be charged on the Consolidated Fund.

(5A) Subject to the provisions of this Article, Parliament